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An outgoing top judge gives some parting advice

HOW DOES Britain, with no frontier lab to its name, thrive in a world of rampant artificial intelligence? Part of the answer lies in the courts. London can be a place where claimants bring a new generation of disputes relating to AI—if it puts in some hard graft, says Sir Geoffrey Vos. He steps down this week as the Master of the Rolls, the second-most-senior judge in England and Wales who oversees the civil courts. He has some parting advice.

Sustaining London’s success, he says, relies on ensuring that English law can give certain and predictable answers to the novel legal problems that AI will throw up. “What this says to the world is, if you want a law which is really thinking about the problems of our modern age, English law is one of those laws,” says Sir Geoffrey, “so come here to resolve those disputes.”

He has led a task-force that has set out to define what the common law implies for a range of hypothetical AI problems. Is a human liable if an AI tool libels someone, or if an AI architect designs a faulty building? Is a radiologist negligent if they failed to use an AI tool that could have detected a tumour? A forthcoming paper will deal with agentic AI tools, which carry out tasks autonomously on behalf of a user. The challenge, says Jacob Turner, a barrister and member of the task-force, is that “AI is the only technology that we have ever developed in the history of civilisation that is able to make its own decisions.”

The task-force is an attempt, Sir Geoffrey says, to “short-circuit” questions that the courts might take years to settle—much as it took years for the courts to decide in the 18th century whether shares were a form of property. “You can’t afford to wait ten years for the Supreme Court to tell you that you’re liable if you fail to put guardrails in place in agentic AI and thereby cause people harm,” he says. “Those things are critically important if people are going to choose English law to determine their technological commercial problems.”

Since the 1970s, London’s lawyers have earned a handsome living by welcoming successive waves of international disputes, thanks to a reputation for honest judges and courts offering a Rolls-Royce service. But so far the AI dividend has been modest, with only a handful of blockbuster cases. Last November the High Court largely rejected claims by Getty Images, a media company, that an AI firm had infringed copyright while training its models. Many more are turning up in American courts. And there is stiff competition from rival centres such as Singapore and Dubai.

London's courts have thrived because English law governs business and transactions across much of the world. But this historical dominance is at risk, Sir Geoffrey suggests. Industries are racing to adopt AI through contracts with the big labs. The dominant ones are either American or Chinese, and operate according to American or Chinese law. "You've got now a sort of basic default position that everything you're doing is going to be powered by AI, and that AI will be prima facie supplied under American law." The upshot, he says, is that "a lack of digital sovereignty can lead to a lack of legal sovereignty."

The Master of the Rolls is a post dating to the 13th century, and popular stereotype portrays English judges as ageing technophobes. In Sir Geoffrey's case, hardly. In recent lectures he has issued blunt warnings to lawyers: hopes to shield the legal industry from AI with prohibitions on its use are a "hopeless avenue". They must "be in the vanguard" and "adapt or die".

People already routinely ask AI for legal advice. Sir Geoffrey has suggested that if the judiciary appears Luddite or "protectionist", it risks losing public trust. "It's extremely undesirable for judges to be baked in history, and not behaving in the same way as other members of our society," he says. He has little time for the complaint that AI submissions are prone to errors and hallucinations; the tech will improve. "I would be asking far more existential questions…how can we best use AI within the justice system to deliver justice to the people we serve in a way they will trust."

In England official guidelines say that AI can "assist" judges, but it "must not displace reasoning…or the exercise of judicial discretion". The dividing line is "hard to draw", says Sir Geoffrey. He recently visited Shenzhen, where an AI-based court system is credited with a sixfold increase in judicial output by reading texts and providing draft reasons for judges to cite.

Ultimately, he stresses, these are limits for Parliament to decide, not judges. But, he has argued, human judges will be irreplaceable as the last resort for people's rights: machines are incapable of the idiosyncrasy or empathy that fully independent humans enjoy. That is essential, he reasons, if the public is to accept a court's verdict; people may well have more trust in an idiosyncratic human judge who is 90% reliable, but who they feel has listened to their grievance, than they would in a perfectly reliable machine, he says. There is, perhaps, more to justice than just spitting out the right answer.